NON-DISCLOSURE AGREEMENT

(Sample Version 2 - Modified)

This Non-Disclosure Agreement (the "Agreement") is entered into as of March 15, 2024 (the "Effective Date") by and between:

COMPANY A INC. ("Disclosing Party")

Address: 123 Main Street, San Francisco, CA 94102

Email: contact@companya.com

and

COMPANY B LLC ("Receiving Party")

Address: 456 Oak Avenue, New York, NY 10001

Email: info@companyb.com

1. PURPOSE

The parties wish to explore a potential partnership opportunity (the "Purpose") and may need to disclose certain confidential and proprietary information to each other.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means all information disclosed by Disclosing Party to Receiving Party, whether orally, in writing, or in electronic form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

Confidential Information specifically includes, but is not limited to:

• Technical data, algorithms, and know-how

• Business strategies, plans, and forecasts

• Customer and supplier lists and information

• Financial information and projections

• Product specifications and roadmaps

• Source code and software documentation

3. OBLIGATIONS

The Receiving Party agrees to:

a) Hold the Confidential Information in strict confidence

b) Not disclose the Confidential Information to any third parties without prior written consent from Disclosing Party

c) Use the Confidential Information solely for the Purpose stated herein

d) Protect the Confidential Information using at least the same degree of care used for its own confidential information, but in no case less than reasonable care

e) Limit access to Confidential Information to employees and contractors who have a legitimate need to know

4. EXCLUSIONS

Confidential Information does not include information that:

• Is or becomes publicly available through no breach of this Agreement by Receiving Party

• Was rightfully in Receiving Party's possession before disclosure by Disclosing Party

• Is independently developed by Receiving Party without use of or reference to Confidential Information

• Is rightfully obtained from a third party without restriction on disclosure

5. TERM AND TERMINATION

This Agreement shall remain in effect for a period of five (5) years from the Effective Date. Either party may terminate this Agreement with thirty (30) days written notice.

6. RETURN OF MATERIALS

Upon request, termination of this Agreement, or completion of the Purpose, Receiving Party shall promptly return all Confidential Information and copies thereof, or destroy all Confidential Information and provide written certification of destruction.

7. NO LICENSE OR WARRANTY

Nothing in this Agreement grants any license, right, or interest to Receiving Party under any patent, copyright, trade secret, trademark, or other intellectual property right of Disclosing Party. All Confidential Information is provided "AS IS" without warranty of any kind.

8. REMEDIES

Receiving Party acknowledges that disclosure of Confidential Information would cause irreparable harm to Disclosing Party. Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law.

9. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to conflicts of law principles. Any disputes shall be resolved in the courts of San Francisco County, California.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

COMPANY A INC.

Signature: _____

Name: John Smith

Title: Chief Executive Officer

Date: March 15, 2024

COMPANY B LLC

Signature: _____

Name: Jane Doe

Title: President

Date: March 15, 2024